SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 12739 of 1985 **CNR: SCIN010127391985**

Date of Pronouncement: 20 December, 1986 *Citation: (1987) 1 SCC 395*

CORAM: Hon'ble P.N. Bhagwati, C.J., R. Misra, G.L. Oza, M.M. Dutt, K.N. Singh, JJ.

Petitioner / Appellant: M.C. Mehta & Another

- VERSUS -

Respondent / State: Union of India & Shriram Foods & Fertilizer Industries

SUBJECT: ENVIRONMENTAL LAW & TORTS **AUTHORITY: Good Law (Foundational Environmental Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Where an enterprise is engaged in a hazardous or inherently dangerous activity and harm results to anyone on account of an accident in the operation of such activity, the enterprise is strictly and absolutely liable to compensate all those who are affected.

STATUTORY PROVISIONS INTERPRETED: Article 21, Article 32, Article 12

FINAL DISPOSITION: ABSOLUTE LIABILITY DOCTRINE FORMULATED AND ENFORCED

EXECUTIVE SUMMARY:

Five-judge Constitution Bench formulated the Principle of Absolute Liability: enterprises engaged in hazardous or inherently dangerous activities owe an absolute and non-delegable duty to the community, free from exceptions in Rylands v. Fletcher.

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